



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

HB 2382: school district superintendents; secondary employment

GROSS FLOOR AMENDMENT

1. Defines *secondary employment* to mean any work, service or business activity for which an individual receives monetary or other compensation as an employee, contractor, business owner or business partner.
2. Excludes from *secondary employment*:
 - a. the discharge of an individual's duties as school district superintendent;
and
 - b. passive investment activity.

GRESS FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2382
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 15-503, Arizona Revised Statutes, is amended to
3 read:

4 15-503. Superintendents, principals, head teachers and school
5 psychologists; terms of employment; evaluation;
6 contract delivery and acceptance; nonretention
7 notice; enforcement; civil penalty; unprofessional
8 conduct; definition

9 A. ~~The~~ A SCHOOL DISTRICT governing board may:

10 1. Employ a superintendent or principal, or both. If the governing
11 board employs a superintendent, the governing board shall determine the
12 qualifications for the superintendent by action taken at a public meeting.
13 The governing board shall require a superintendent to BOTH:

14 (a) Have a valid fingerprint clearance card that is issued pursuant
15 to title 41, chapter 12, article 3.1.

16 (b) OBTAIN APPROVAL FROM THE GOVERNING BOARD BEFORE ENGAGING IN ANY
17 SECONDARY EMPLOYMENT WHILE THE SUPERINTENDENT IS EMPLOYED PURSUANT TO THIS
18 PARAGRAPH. THE GOVERNING BOARD MUST CONSIDER AND VOTE IN A PUBLIC MEETING
19 WHETHER TO APPROVE OR DISAPPROVE SECONDARY EMPLOYMENT PURSUANT TO THIS
20 SUBDIVISION.

21 2. Appoint a head teacher.

22 3. Jointly with another governing board employ a superintendent or
23 a principal, or both. If the governing board jointly employs a
24 superintendent, the governing boards shall jointly determine the
25 qualifications for the superintendent by action taken at a public meeting.
26 The governing boards shall require a superintendent to BOTH:

27 (a) Have a valid fingerprint clearance card that is issued pursuant
28 to title 41, chapter 12, article 3.1.

1 (b) OBTAIN APPROVAL FROM EACH GOVERNING BOARD BEFORE ENGAGING IN
2 ANY SECONDARY EMPLOYMENT WHILE THE SUPERINTENDENT IS EMPLOYED PURSUANT TO
3 THIS PARAGRAPH. EACH GOVERNING BOARD MUST CONSIDER AND VOTE IN A PUBLIC
4 MEETING WHETHER TO APPROVE OR DISAPPROVE SECONDARY EMPLOYMENT PURSUANT TO
5 THIS SUBDIVISION.

6 B. The term of employment of superintendents may be for any period
7 not exceeding three years, except that if the superintendent's contract
8 with the school district is for multiple years pursuant to this
9 subsection, the school district shall not offer to extend or renegotiate
10 the contract ~~until no~~ earlier than fifteen months before the ~~expiration of~~
11 ~~the~~ contract EXPIRES. The term of employment of principals may be for any
12 period not exceeding three years, except that if the principal's contract
13 with the school district is for multiple years the school district shall
14 not offer to extend or negotiate the contract until May of the year
15 preceding the final year of the contract. The school district governing
16 board or the CHARTER SCHOOL governing body ~~of the charter school~~ shall
17 communicate the superintendent's or principal's duties with respect to the
18 classroom site fund established by section 15-977.

19 C. The governing board shall establish systems for the evaluation
20 of the performance of principals and other school administrators and
21 certificated school psychologists in the school district. In ~~the~~
22 ~~development~~ DEVELOPING and ~~adoption of~~ ADOPTING these performance
23 evaluation systems, the governing board shall avail itself of the advice
24 of its administrators and certificated school psychologists. Each
25 evaluation shall include recommendations as to areas of improvement in the
26 performance of the certificated school psychologist if the performance of
27 the certificated school psychologist warrants improvement. After
28 transmittal of an assessment, a governing board designee shall confer with
29 the certificated school psychologist to make specific recommendations as
30 to areas of improvement in the certificated school psychologist's
31 performance. The governing board designee shall provide assistance and
32 opportunities for the certificated school psychologist to improve
33 performance and shall follow up with the certificated school psychologist
34 after a reasonable period of time for the purpose of ascertaining that the
35 certificated school psychologist is demonstrating adequate performance.
36 The evaluation process for certificated school psychologists shall include
37 appeal procedures for certificated school psychologists who disagree with
38 the evaluation of their performance, if the evaluation is for use as
39 criteria for establishing compensation or dismissal.

40 D. On or before May 15 each year, the governing board shall offer a
41 contract for the next school year to each certified administrator and
42 certificated school psychologist who is in the last year of the person's
43 contract unless, on or before April 15, the governing board, a member of
44 the board acting on behalf of the governing board or the superintendent of
45 the school district gives notice to the administrator or certificated
46 school psychologist of the governing board's intention not to offer a new
47 contract. If the governing board has called for an override election for

1 the third Tuesday in May as provided in section 15-481, the governing
2 board shall offer a contract for the next school year to each certified
3 administrator or certificated school psychologist who is in the last year
4 of the person's contract on or before June 15 unless, ~~no~~ NOT later than
5 five days after the override election excluding Saturday, Sunday and legal
6 holidays, the governing board, a member of the governing board acting on
7 behalf of the governing board or the superintendent of the school district
8 gives notice to the administrator or the certificated school psychologist
9 of the governing board's intention not to offer a new contract. The
10 administrator's or the certificated school psychologist's acceptance of
11 the contract shall be indicated within thirty days after the date of the
12 written contract or the offer is revoked. The administrator or
13 certificated school psychologist accepts the contract by signing the
14 contract and returning it to the governing board or by making a written
15 instrument that accepts the terms of the contract and delivering the
16 written instrument to the governing board.

17 E. Notice of the governing board's intention not to reemploy the
18 administrator or certificated school psychologist shall be made by
19 delivering the notice personally to the administrator or the certificated
20 school psychologist or by sending the notice by certified mail, postmarked
21 on or before the applicable deadline prescribed in subsection D of this
22 section, and directed to the administrator or the certificated school
23 psychologist at the person's place of residence as recorded in the school
24 district records.

25 F. The governing board shall make available the evaluation and
26 performance classification of each principal in the school district to
27 school districts and charter schools that are inquiring about the
28 performance of the principal for hiring purposes.

29 G. IF THE COUNTY SCHOOL SUPERINTENDENT FOR A COUNTY IN WHICH A
30 SCHOOL DISTRICT IS LOCATED NOTIFIES THE ATTORNEY GENERAL OR COUNTY
31 ATTORNEY THAT A SCHOOL DISTRICT SUPERINTENDENT IS ENGAGING IN SECONDARY
32 EMPLOYMENT WITHOUT PRIOR APPROVAL FROM THE SCHOOL DISTRICT GOVERNING
33 BOARD, THE ATTORNEY GENERAL OR THE COUNTY ATTORNEY SHALL INVESTIGATE THE
34 ALLEGATIONS AND MAY BRING AN ACTION IN A COURT OF COMPETENT JURISDICTION
35 TO ENJOIN THE ALLEGED VIOLATION. FOR EACH VIOLATION OF THIS SECTION, THE
36 COURT MAY IMPOSE A CIVIL PENALTY AGAINST A SCHOOL DISTRICT SUPERINTENDENT
37 OF NOT MORE THAN \$1,000 FOR EACH MONTH IN WHICH THE SUPERINTENDENT ENGAGES
38 IN SECONDARY EMPLOYMENT IN VIOLATION OF SUBSECTION A OF THIS SECTION. A
39 SCHOOL DISTRICT SUPERINTENDENT IS PERSONALLY RESPONSIBLE FOR PAYING ALL
40 CIVIL PENALTIES IMPOSED AGAINST THE SUPERINTENDENT PURSUANT TO THIS
41 SUBSECTION. THE SCHOOL DISTRICT MAY NOT PAY A CIVIL PENALTY THAT IS
42 IMPOSED PURSUANT TO THIS SUBSECTION ON BEHALF OF, OR OTHERWISE REIMBURSE,
43 A SCHOOL DISTRICT SUPERINTENDENT AGAINST WHOM THE CIVIL PENALTY IS
44 IMPOSED.

45 H. A SCHOOL DISTRICT SUPERINTENDENT WHO ENGAGES IN SECONDARY
46 EMPLOYMENT WITHOUT PRIOR APPROVAL FROM THE SCHOOL DISTRICT GOVERNING BOARD
47 IN VIOLATION OF SUBSECTION A OF THIS SECTION COMMITS AN ACT OF

1 UNPROFESSIONAL CONDUCT. NOTWITHSTANDING SECTION 15-534.02, IF THE STATE
2 BOARD OF EDUCATION REVOKES A SCHOOL DISTRICT SUPERINTENDENT'S CERTIFICATE
3 ON THE GROUNDS THAT THE SUPERINTENDENT COMMITS AN ACT OF UNPROFESSIONAL
4 CONDUCT DESCRIBED IN THIS SUBSECTION, THE STATE BOARD OF EDUCATION SHALL
5 DETERMINE THAT THE SUPERINTENDENT IS PROHIBITED FROM SUBMITTING AN
6 APPLICATION FOR CERTIFICATION PURSUANT TO SECTION 15-501.01, SUBSECTION C,
7 PARAGRAPH 7 FOR A SPECIFIED PERIOD OF NOT MORE THAN THREE YEARS.

8 [I. FOR THE PURPOSES OF THIS SECTION, "SECONDARY EMPLOYMENT":

9 1. MEANS ANY WORK, SERVICE OR BUSINESS ACTIVITY FOR WHICH AN
10 INDIVIDUAL RECEIVES MONETARY OR OTHER COMPENSATION AS AN EMPLOYEE,
11 CONTRACTOR, BUSINESS OWNER OR BUSINESS PARTNER.

12 2. DOES NOT INCLUDE ANY OF THE FOLLOWING:

13 (a) THE DISCHARGE OF AN INDIVIDUAL'S DUTIES AS A SUPERINTENDENT FOR
14 THE SCHOOL DISTRICT.

15 (b) THE DISCHARGE OF AN INDIVIDUAL'S DUTIES AS A SUPERINTENDENT FOR
16 MORE THAN ONE SCHOOL DISTRICT PURSUANT TO SUBSECTION A, PARAGRAPH 3 OF
17 THIS SECTION.

18 (c) PASSIVE INVESTMENT ACTIVITY.]

19 Sec. 2. Section 38-503, Arizona Revised Statutes, is amended to
20 read:

21 38-503. Conflict of interest: exemptions: employment
22 prohibitions

23 A. Any public officer or employee of a public agency who has, or
24 whose relative has, a substantial interest in any contract, sale, purchase
25 or service to ~~such~~ THE public agency shall make known that SUBSTANTIAL
26 interest in the official records of ~~such~~ THE public agency and shall
27 refrain from voting ~~upon~~ ON or otherwise participating in any manner as an
28 officer or employee in ~~such~~ THE contract, sale or purchase.

29 B. Any public officer or employee who has, or whose relative has, a
30 substantial interest in any decision of a public agency shall make known
31 ~~such~~ THAT SUBSTANTIAL interest in the official records of ~~such~~ THE public
32 agency and shall refrain from participating in any manner as an officer or
33 employee in ~~such~~ THE decision.

34 C. Notwithstanding ~~the provisions of~~ subsections A and B of this
35 section, ~~no~~ A public officer or employee of a public agency shall NOT
36 supply to ~~such~~ THE public agency any equipment, material, supplies or
37 services, unless pursuant to an award or contract let after public
38 competitive bidding, except that:

39 1. A school district governing board may purchase, as provided in
40 sections 15-213 and 15-323, supplies, materials and equipment from a
41 school board member.

42 2. Political subdivisions other than school districts may purchase
43 through their governing bodies, without using public competitive bidding
44 procedures, supplies, materials and equipment ~~not exceeding three hundred~~
45 ~~dollars~~ OF NOT MORE THAN \$300 in cost in any single transaction, not to
46 exceed a total of ~~one thousand dollars~~ \$1,000 annually, from a member of
47 the governing body if the policy for such purchases is approved annually.

1 D. Notwithstanding subsections A and B of this section: ~~and~~
2 1. As provided in sections 15-421 and 15-1441, the governing board
3 of a school district or a community college district may not employ a
4 person who is a member of the governing board or who is the spouse of a
5 member of the governing board.
6 2. AS PROVIDED IN SECTION 15-503, THE GOVERNING BOARD OF A SCHOOL
7 DISTRICT MAY NOT EMPLOY A PERSON AS A SUPERINTENDENT WHILE THE PERSON
8 ENGAGES IN SECONDARY EMPLOYMENT WITHOUT PRIOR APPROVAL BY THE SCHOOL
9 DISTRICT GOVERNING BOARD.
10 Sec. 3. Existing contracts; applicability
11 Sections 15-503 and 38-503, Arizona Revised Statutes, as amended by
12 this act, apply to employment contracts that are executed, amended or
13 renewed after the effective date of this act.
14 Enroll and engross to conform
15 Amend title to conform

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